

Penal Policy
LAW 401D 001
Professor Michael Jackson

Marya Akhtar, student no.: 53148086

The Great Escape – Reattempted

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The great escape - reattempted

This is an attempt to look deeper into the notion of escape and the many ways in which the stage of escape is accomplished by prisoners. Escape is more than merely running away from prison. It is the use of drugs, it is making a parallel world inside the walls, it is expressing yourself through art, it is hurting yourself, it is improving yourself, getting yourself ready for the outside and it is breaking yourself down, reaching a point where you no longer feel pain, it is reached through spirituality and healing sessions and through blindness and suicide. This paper is a compilation of various poems and excerpt of prose from writers, artists, prisoners – all whom I have listened to or read and who influence me. Belonging to a family who have fought, struggled and been imprisoned in the name of justice during the many turbulent times of Pakistan's history – and eventually reached the status of political refugees -, escape, I find is more than merely running away. Anything which is not credited to someone is my own writing.

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On human interaction/solidarity (and the art of prison poetry):

A secret meeting is being held.

They sit in a corner in the common area and talk in low voices.

They talk of their kids, of their life before, of life now.

They gossip, they laugh and sometimes they cry a bit.

They are sisters in here. They have each others back.

They are here for drug dealing or smuggling, for robbery or violence.

And they are thrown into prison for recovery/control/discipline/convenience.

The strangest thing happened to me today

an invisible mailman came my way

He brought me something that wasn't quite there,

and you see an invisible mailman is quite rare.

So I open this nothing real wide

to find even less when I looked inside.

The penmanship was neat and clean

So clean in fact it couldn't be seen.

The scent was sweet as I recall

So sweet in fact there was none at all.

Maybe next time you'll think twice

And pay attention to this advice.

I sit behind these walls for now;

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But things could always change somehow.

I could be out there when things are better

And you could be in here expecting a letter.

(The Invisible Mailman, by Craig Harrison, Prisoner at <http://www.wild-side.com/darksorrow/poetry.html>)

A talk with Paolo on Commercial Dr.

Paolo is from Spain. He works in one of the coffeehouses on Commercial Dr. in Vancouver – the one which says “best cappuccino on Commercial” in the window. I forget its name. I go in and order. He’s excited when I tell him I am from Denmark. Though Spain and Denmark are nowhere near similar – we both are meeting a fellow European and begin talking.

“How long you been here Paolo?”

“Oh, around 30 years. I lived in Chile for some years”, Paolo’s family was one of many who fled to South America from Spain during Franco’s reign.

The talk flows, I share, he shares, some coffeehouse regulars share.

It’s a sunny day, I go out for a bit in the park right across and come back.

Paolo was imprisoned for his socialist leanings during Pinochet’s command on Chile. He was tortured, he saw his comrades killed. Or they simply disappeared.

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I tell him about how the Supreme Court of Chile has stated that the crime of involuntary disappearance is not subject to any statutory limitations, it is a so-called “on-going” crime; once committed it never ceases.

He laughs and calls it legal mumbo jumbo. Then he pauses and thinks. I am too young, he tells me.

“Some people deserve to die. It is OK to take their lives – the harm is not in taking their lives, the harm is the deep, shameful scar on society, when we collectively decide to kill”.

Paolo escaped from prison with five other prisoners. He didn’t know them well. Two of them died, the rest got across the border. “*We are brothers*” Paolo said.

I leave the coffeehouse when it’s time to close. I promise to come visit again.

(4. April 2009)

‘Tell me, Petrov’, I asked him, ‘Your lot aren’t angry, are they, [...] that we didn’t take part in the demonstration? [...] I mean, we ought to have, out of comradeship’

‘But ... but how on earth can you be our comrade?’ he asked in bewilderment, [...] I understood that they would never accept me as a comrade, even if I were a repeat offender, even if I were sentenced to eternity, even if I were in the special category.

(Dostoevsky – The House of the Dead)

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This prose is inspired by a BBC documentary titled “Stolen Dreams” made by my mother in the early 80’s on child prisons in Pakistan. She bribed the police, smuggled a camera in and started interviewing the kids there ---

A streetkid once, now a prisoner; when asked his name responds with his prison number. He proudly shows his battle wounds and scars, he smiles and laughs when asked what he’s in for. What did the judge sentence him? He’s never been tried. He is here because the streets needed to be cleaned up. Does he miss the world outside? Sure he does. But he is glad he gets food, and he’s made good friends. *They are like brothers.* Where is his family? He falls silent.

On isolation/confinement

Open call for prison architects

Send me your blueprints ASAP

Stack the walls such that I cannot breathe

Man is breedin' forever, because of the weather I hope soon to leave from
the east

No more absolutes, no more absolutes

Stick your penitentiary clothes inside the vent and run along, Leigh

Amateur seasalt gatherers colonized

They're good enough for Conrad Hilton, not good enough for my eyes

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I trust you will tell me if I am making a fool of myself

Man is breedin' forever, breedin' forever, they come out and blister the
sea, oh yeah

(Pavement with the song "Fin")

I am here to serve my time. My punishment is confinement.

**What confinement? The one of the walls or the one building up inside me? Do I not
show sufficient remorse if I try to escape? Physically? Mentally?**

**Or if I attempt to escape knowing that I will be caught again; in the knowledge that
these seconds (minutes? hours? days? months? years?) that I get will be the only ones.**

**That freedom is a glimpse outside the walls. Am I sufficiently incarcerated if I escape
by drugs? If I cut? If I write? If I sing or dance? Or cry or laugh?**

Inspired by:

Every time I see a crack in the door I try to get a look on the other side. I figure
I'm never going to get out of prison and so the days I take are the only days I'm
ever going to get.

(Dennis Smith's evidence as recounted in Justice Behind the Walls by

Michael Jackson)

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These poor men only needed to be allowed to live a little in their own way, to enjoy themselves like human beings, to *escape* the prison-camp routine just for an *hour*, - and they would be morally transformed, even if only for a few *minutes*.

(Dostoevsky – The House of the Dead, my italics)

On pain, hate and anger (and the art of prison poetry):

I hurt myself today
To see if I still feel
I focus on the pain
The only thing that's real
The needle tears a hole
The old familiar sting
Try to kill it all away
But I remember everything

(Trent Reznor – Hurt)

San Quentin, you've been livin' hell to me
You've hosted me since nineteen sixty three
I've seen 'em come and go and I've seen them die
And long ago I stopped askin' why

San Quentin, I hate every inch of you.

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You've cut me and you scarred me thru an' thru.

And I'll walk out a wiser weaker man;

Mister Congressman you can't understand.

San Quentin, what good do you think you do?

Do you think I'll be different when you're through?

You bent my heart and mind and you may my soul,

And your stone walls turn my blood a little cold.

San Quentin, may you rot and burn in hell.

May your walls fall and may I live to tell.

May all the world forget you ever stood.

And may all the world regret you did no good.

San Quentin, I hate every inch of you.

(Johhny Cash – Live at San Quentin, February 24th, 1969, my italics: live version at

<http://www.youtube.com/watch?v=1zgja26eNeY>)

When I get out

the first thing I'm gonna do

is get me a gun to protect myself

from the police.

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Probably more than one gun
because
there's so many different kinds
of police.

[...]

It was you who told me I lived
in a free country
as you ground your heel in my humanity
and laughed at my pleas for dignity
and spat on my manhood.

[...]

In prison we simply say:

Payback belongs to me
when I get out.

It won't be much longer.

I'm counting the days

So, you better pray I don't find you,

gentle reader,

'cause when I've paid my debt

to society

society must pay its debt to me.

When I get out . . .

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(Excerpt from poem by Standing Deer, AKA Robert Hugh Wilson, a 65 year old

Choctaw Indian who has been incarcerated for 21 years at

<http://www.sonic.net/~doretk/Issues/98-09%20FALL/stet.html>)

On beauty:

Each star a rung,
night comes down the spiral
staircase of the evening.
The breeze passes by so very close
as if someone just happened to speak of love.
In the courtyard,
the trees are absorbed refugees
embroidering maps of return on the sky.
On the roof,
the moon - lovingly, generously -
is turning the stars
into a dust of sheen.
From every corner, dark-green shadows,
in ripples, come towards me.
At any moment they may break over me,
like the waves of pain each time I remember
this separation from my lover.

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This thought keeps consoling me:
though tyrants may command that lamps be smashed
in rooms where lovers are destined to meet,
they cannot snuff out the moon, so today,
nor tomorrow, no tyranny will succeed,
no poison of torture make me bitter,
if just one evening in prison
can be so strangely sweet,
if just one moment anywhere on this earth.

**(A Prison Evening - Faiz Ahmed Ahmed [1911-1984] acknowledged as one of the
greatest Urdu poets in Pakistan, imprisoned and exiled for his political views,
nominated shortly after his death for the Nobel Prize)**

*I went to East Vancouver and chatted with an elderly homeless person there. I'm not sure
whether he was blind or pretending to be, but he wore dark shades and was playing the
drums at a street corner. I told him about my visit to Matsqui and he started humming a
tune and before long we began singing and laughing:*

“When I get out
Imma’ buy a hat
A fine hat fo’ my head
To wear on a crisp autumn’s day
With my coat and scarf

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When I get out”

(14. April 2009, Vancouver)

There was no bitterness or spite in my heart, in that instant I felt the urge to love and embrace any one of my former enemies. I felt this joy today as I was saying farewell to those dear to me just before our execution

(Dostoevsky – The House of the Dead)

On treatment

“The Government cannot be concerned any longer with outmoded penological theories. Cram criminals together and see what happens. You get concentrated criminality, crime in the midst of punishment. Soon we may be needing all our prison space for political offenders” [...] “You’re not cured yet. There’s still a lot to be done. Only when your body reacts promptly and violently to violence, as to a snake, without further help from us, without medication, only then – ”

(Anthony Burgess – A Clockwork Orange)

On restoration

Suppose that confinement is not human. That it is not within human nature. Hence, the normal reaction to confinement is an attempt to escape.

Suppose that what is natural is when a crime has been committed things return to status quo ante. This is done through redemption, through restoration.

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Greenlandic inuit societies call for a community meeting where the victim or relatives speak things through – an adequate punishment is decided upon in agreement with the violator or his representatives.

Tribal clans of Pakistan and Afghanistan apply the practice of blood money.

Yet others practice magical healing.

These are all customs from societies where the community is valued higher than individual losses¹. Here, confinement has little or no place. It serves neither victim nor violator. These are societies that have developed through hundreds of years.

Confinement was introduced in the end of the 18th century. It should not be hard to suppose that confinement is not human.

Of course, you cannot simply close down prisons on that rationale. Our society is literally built upon confinement. You only need your very basic Foucault to know that, or a look at a blueprint of the panopticon to see how it has influenced us. Suppose then, that confinement is here to stay. How many types of escapes shall we prohibit, how many shall we allow?

This, I think, is the most important question of all.

The traditional Navajo justice and harmony ceremony is named Hozhooji Naat'aanii, and focuses on the regaining of K'e (respect). The procedure involves 1) prayer, 2) expressing feelings, 3) the lecture from an Elder, 4) discussion, 5) reconciliation and 6) consensus –

¹ The word for a criminal is "he who acts as if he has no relatives" in many indigenous languages around the world, many of them having no historic relation with each other.

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A secret meeting is being held.

They sit in a corner in the common area and talk in low voices.

They appear the same way they would any day

But today is different

Today they are no longer confined

Today they set each other and themselves free

They are sisters in here

They are criminals seeking forgiveness and forgiving each other today.